

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to melt ICE defenses.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No.

By Ms. Rausch, a petition (accompanied by bill) (subject to Joint Rule 12) of Rebecca L. Rausch for legislation to melt ICE defenses. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to melt ICE defenses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 233 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by adding the following new section:-

3 Section 84. Notwithstanding any general or special law to the contrary, a federal agency
4 memorandum shall not constitute a defense to a civil violation of state law, including but not
5 limited to tort actions.

6 SECTION 2. Chapter 265 of the General Laws, as appearing in the 2024 Official Edition,
7 is hereby amended by adding the following new section:-

8 Section 61. Notwithstanding any general or special law to the contrary, a federal agency
9 memorandum shall not constitute a defense to a violation of state criminal law, including but not
10 limited to violations of this chapter.